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Justification Review Document
for an Exception to Fair Opportunity – FAR 16.505(b)(2)

Program/Equipment: Program Executive Office (PEO) Soldier Headquarters (HQ)
Systems Engineering and Technical Assistance (SETA) Support Services

Authority: 10 United States Code (U.S.C) 3406(c)(3) as implemented in Federal Acquisition Regulation (FAR) 16.505(b)(2)(i)(C), the order must be issued on a sole-source basis in the interest of economy and efficiency because it is a logical follow-on to an order already issued under the contract, provided that all awardees were given a fair opportunity to be considered for the original order.

Amount: [REDACTED]

Prepared by:

[REDACTED]

Contract Specialist

Army Contracting Command – Aberdeen Proving Ground (ACC-APG)

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Date Prepared: 04-April-2025

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Date Reviewed: 04-April-2025

Technical Representative:

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Date Reviewed: 11-April-2025

Requirements Representative:

[REDACTED]

Director

PEO Soldier Headquarters - RMD

Phone: [REDACTED]

E-mail: [REDACTED]

Date Reviewed: 11-April-2025

Reviews

I have reviewed this justification and find it adequate to support the justification for an exception to fair opportunity.

Legal Counsel:

[REDACTED]

Attorney Advisor

Army Material Command Legal Center, APG at Ft. Belvoir

Ph: [REDACTED]

E-Mail: [REDACTED]

Signature :

[REDACTED]

Date : 16 April 2025

Justification for an Exception
to Fair Opportunity Under FAR 16.505(b)(2)

1. **Contracting Activity:** Army Contracting Command-Aberdeen Proving Ground (ACC-APG, 6515 Integrity Court, Bldg. 4310, Aberdeen Proving Ground (ACC-APG).

2. **Description of Action:** Program Executive Office Soldier Headquarters (PEO Soldier HQ) and ACC-APG, Division D, request written approval to execute a second "bridge action" to extend the period of performance (PoP) of task order W91CRB-20-F-0013 (Janus Research Group, LLC,) for up to three (3) months in the amount of

██████████ This immediate action is a follow-on bridge action to task order W91CRB-20-F-0013 and is not being competed in accordance with the authority of 10 United States Code (U.S.C) 3406(c)(3) as implemented in Federal Acquisition Regulation (FAR) 16.505(b)(2)(i)(C). Task Order W91CRB-20-F-0013 was awarded, using full and open competition, under Responsive Strategic Sourcing for Services (RS3) indefinite-delivery indefinite-quantity contract W15P7T-19-D-0068 and is comprised of a mix of cost-plus-fixed-fee and cost contract line-item numbers (CLINs) for labor and other direct costs (ODC). This modification action will formally add additional pricing and CLINs and option CLINs which, when awarded or exercised, will extend the period of performance of the subject task order up to three (3) months, in accordance with Table 3 below.

To note, clause 52.217-8 Option to Extend Services is included in the task order. However, since options related to clause 52.217-8 were not priced, evaluated, and included during the task order competition, justification for other than full and open competition is being sought under authority FAR 16.505 (b)(2) *Exceptions to the fair opportunity process* and, bilateral agreement with the contractor will be negotiated to continue the subject services.

██████████ of Fiscal Year (FY) 2025 funds are available to incrementally fund this action in accordance with FAR 52.232-22.

3. **Description of Supplies/Services:** (Reference at Paperless Contract File, current Task Order W91CRB-20-F-0013 awarded 22 October 2019). This contract provides System Engineering and Technical Assistance (SETA) Advisory and Assistance Services to PEO Soldier HQ and 5 primary directorates: Acquisition & Enterprise Support, Resource Management, Operations, Product Support Manager, and Assistant PEO Futures & Integration. The support provided under this effort includes engineering and test support, acquisition support, business management support, acquisition logistics support, operations support, cybersecurity support, information management /

information technology support, property accountability support, international program support, and administrative support.

By approval of this document, the current contractor shall continue to provide support services in accordance with the Performance Work Statement outlined within Section C of the current Task Order and as outlined in Table 3 below. All SETA services currently being performed are required during the proposed extension. The estimated value of the proposed extension is based on the existing terms (rates and percentages) of the task order for Performance Year 4.

Table 1 - Periods of Performance for Current Conformed Task Order Contract (through Mod P00029)

CLINs 0001-0002	Transition-in – Labor & ODC	15 APR 20 – 21 MAY 20	
CLINs 0003-0004	Base Period – Labor & ODC	22 MAY 20 – 21 MAR 21	
CLINs 0005-0006 Options Exercised	Option Year 1 – Labor & ODC	22 MAR 21 – 21 MAR 22	
CLINs 0007-0008 Options Exercised	Option Year 2 – Labor & ODC	22 MAR 22 – 21 MAR 23	
CLINs 0009-0010 Options Exercised	Option Year 3 – Labor & ODC	22 MAR 23 – 21 MAR 24	
CLINs 0011-0012 Options Exercised	Option Year 4 – Labor & ODC	22 MAR 24 – 21 JAN 25	
CLINs 0013-0014 Unexercised Options	Transition-out - Labor & ODC PoP Revised; J&A 25-D-0110	22 APR 25 – 21 JUN 25	
CLINs 0015-0016	PoP Extension – Labor and ODC J&A 25-D-0110	22 JAN 25 - 21 APR 25	
Total Estimated Cost (Value of Base + All Options) ----->			

Table 2 - Total Estimated Cost of Additional Extension of Labor and Other Direct Costs

Category	*Estimated Cost for 3 Additional Months of Performance
Labor	
Fixed Fee	
Other Direct Costs	
Total Estimated Cost	

*Values above are based on previously negotiated costs/rates for Option 4 Labor and Other Direct Costs

Table 3 - Extension Period: Proposed CLIN Structure, Periods of Performance, and Estimated Cost

<u>Contract Line-Item Number (CLIN)</u>	<u>Period of Performance</u>	<u>Estimated Value of 3 Month Extension</u>
New CLIN 0017 Labor	<u>1-Month Extension of PoP:</u> 22 April 2025 – To: 21 May 2025	
	Fixed Fee	
New CLIN 0018 ODCs	<u>1-Month Extension of PoP:</u> 22 April 2025 – To: 21 May 2025	
New CLIN 0019 Labor (Unexercised Option)	<u>1-Month Extension of PoP:</u> 22 May 2025 – 21 June 2025	
	Fixed Fee	
New CLIN 0020 ODCs (Unexercised Option)	<u>1-Month Extension of PoP:</u> 22 May 2025 – 21 June 2025	
New CLIN 0021 Labor (Unexercised Option)	<u>1-Month Extension of PoP:</u> 22 June 2025 – 21 July 2025	
	Fixed Fee	
New CLIN 0022 ODCs (Unexercised Option)	<u>1-Month Extension of PoP:</u> 22 June 2025 – 21 July 2025	
Existing CLIN 0013 Transition-out Period - Labor (Unexercised Option)	<u>Change Existing Unexercised Option PoP Based on Addition of CLINs 0017 and 0019:</u> 22 July 2025 – 21 September 2025	Change to PoP only, based on 3-month extension to Labor and ODCs.
Existing CLIN 0014 Transition-out Period – ODCs (Unexercised Option)	<u>Change Existing Unexercised Option PoP Based on Addition of CLINs 0018 and 0020:</u> 22 July 2025 – 21 September 2025	Change to PoP only, based on 3-month extension to Labor and ODCs.
Total Estimated Cost of Proposed Extension ----->		
Total Estimated Cost (Value of Base + All Options) Plus Extension----->		

4. Authority Cited: 10 United States Code 3406(c)(3) as implemented in Federal Acquisition Regulation 16.505(b)(2)(i)(C), the order must be issued on a sole-source basis in the interest of economy and efficiency because it is a logical follow-on to an order already issued under the contract, provided that all awardees were given a fair opportunity to be considered for the original order.

5. Reason for Authority Cited: In October 2019, as the result of a fair opportunity competition under the RS3 multiple award IDIQ, task order W91CRB-20-F-0013 was awarded to Janus Research Group, LLC (Small Business). In January 2025, Justification and Approval, JA-25-D-0110 was approved and modification action W91CRB-20-F-0013-P00029 was awarded, providing for an additional three months of performance by Janus Research Group, LLC and allowing for completion of the source selection for the new, long-term task order SETA contract, outlined in Table 4 below. Awarding an additional period of performance extension to the current contractor was necessary to ensure uninterrupted performance of mission critical SETA services to PEO Soldier HQ under task order W91CRB-20-F-0013.

The Government requires an additional extension (up to three months) to the performance under the current task order to Janus Research Group, LLC due to unexpected and unavoidable delays being experienced on the current SETA task order recompetit process. The factors influencing this delay are (1) implementation of a novel approach initiative to a streamlined solicitation process which used a 3-phase evaluation approach utilizing oral presentations, to down-select to the offerors whose proposals were rated "satisfactory confidence" or "high confidence" for the Staffing and Management approach evaluation sub-factor, prior to formal proposal submission, and provision for additional time to incorporate lessons learned from a similarly competed SETA effort; (2) parallel procurement workloads between this effort and a second similar SETA recompetit effort, which have award timelines that were offset by only a week and are being managed by already constrained contracting resources; (3) extensive delays created during evaluations generated by use of less seasoned evaluators on the source selection team; and (4) a change in members of the evaluation team.

Based on time alone, it is not feasible or logical to attempt to solicit and award a fully competed fair opportunity for an up-to three (3)-month task order. Attempting to do so would cause a significant disruption in provision of services and result in duplicative costs of transitioning personnel on and off task orders.

Table 4. Milestones for Award of PEO Soldier HQ SETA Recompete

Request for Information Issued	Issued 25 OCT 23
Solicitation Issued	Issued 06 MAY 24 under RS3-24-0006
<u>Phase I</u> (Transition-in Plan and Human Capital & Mission Accomplishment)	Completed 15 OCT 24
<u>Phase II</u> Oral presentations of Staffing & Management Approach	Completed 16 OCT 24
<u>Phase III:</u> (1) Invitations sent to offerors	Completed 16 OCT 24
(2) Proposal submission (cost volume, key personnel & resumes, property management plan & small business participation)	Received volumes 31 OCT 24
(3) Evaluations Completed	Completed JAN-FEB 2025
Prepare Pre-interchange Objectives documentation	Completed 19 FEB 2025
Conduct interchanges	Completed 6-18 MAR 2025
Evaluation addendums	18 MAR – 30 APR 2025
Task Order Decision Document/Award Prep	Estimated 30 APR – 6 JUL 2025
COCO Peer Review	Estimated 6 JUL 2025
Legal Review	Estimated 13 JUL 2025
Award of Task Order	Estimated 20 JUL 2025

Historically, on average, RS3 Multiple-award IDIQ awards competitively executed under \$25M, for the type of services required for this action, would need approximately ~115 calendar days from receipt of the Acquisition Requirements Package (ARP) to award, as shown below:

- (1) ARP Review- estimated ~20 calendar days
- (2) Receipt of Proposal – estimated ~30 calendar days
- (3) Evaluation of Proposals - estimated ~30 calendar days, # of proposals received.
- (4) Discussions and Evaluation Addendums - estimated ~25 calendar days
- (5) Award Decision - estimated ~10 calendar days.

As a result, an estimated 100–115-day interruption in services would be expected if the Government were to attempt to re-compete and award a shorter-term task order versus executing the subject extension to the PoP.

Attempting to introduce another vendor would not be an economical or efficient course of action and would lead to an unacceptable break in service. Janus Research Corp, LLC (Janus) currently has its resources in place and is performing to meet the needs of the Government. At this point in time, between the end of the current SETA task order and the upcoming recompetes award, Janus is the only contractor with the instantaneous capability (knowledge and understanding of current work performance) to provide the continuous SETA support necessary to ensure uninterrupted services while the award of the recompetes is finalized.

The support provided by Janus under the current SETA Task Order, which would be disrupted by a lapse, include Engineering, Operations, Property Accountability, Business Management, Cybersecurity, International Program, Acquisition Logistics, Information Management/Information Technology, and Administrative. There are 63 full-time contractor employees supporting missions for PEO Soldier HQ and the 5 primary directorates: Acquisition & Enterprise Support, Resource Management, Operations, Product Support Manager, and Assistant PEO Futures & Integration. Their functions in support of the PEO Soldier mission involve the acquisition of Soldier weapons, night vision equipment, uniforms, and Soldier protective equipment including helmets and body armor. Specific areas of support include acquisition, logistics, engineering, operations, cyber security, graphics, and quality assurance.

A lapse in SETA services will have significant, unacceptable impacts to PEO Soldier HQs. If the services are not continued via a bridge contract modification action to the incumbent, currently performing contractor, Janus, PEO Soldier will likely experience the far-reaching impacts in their ability to equip Soldiers with products that provide critical protection and increase lethality, mobility, and survivability.

6. Efforts to Obtain Competition: According to FAR exception 5.202(a)(6), a notice for this proposed action is not necessary as the proposed task order action is an order placed under subpart 16.5. However, in accordance with 16.505(b)(2)(ii)(D), a notice in accordance with FAR 5.301 will be published and will make this justification publicly available.

a. Effective competition. Effective competition, either limited, or full and open is not expected for this subject action. However, competition requirements will be met as the follow-on competitive award process is currently underway with an anticipated award date in FY25Q3 under solicitation RS3-24-0006.

b. Subcontracting competition. Janus Research Group, LLC is considered a small business under RS3 contract W15P7T-19-D-0068 and an acceptable Small Business Participation Plan is incorporated into the contract award. In addition, Small

Business Participation Plans were required for the solicitation (i.e., RS3-19-R-0057) under which task order W91CRB-20-F-0013 was awarded and, Janus's Small Business Participation Plan is also incorporated under this award. Any subcontracting clauses from the base RS3 contract, such as FAR 52.219-8 Utilization of Small Business Concerns, and 52.244-5 Competition in Subcontracting that are applicable to the resulting award will be enforced.

7. Actions to Increase Competition: The subject SETA support services are currently being competed on solicitation RS3-24-0006, which has garnered significant competitive interest. However, no effort is being made to increase competition for this immediate effort since this is a bridge modification for up to an additional three (3) months of continued work performance by the incumbent, while the final steps to competitively award the renewal task order contract are conducted.

This immediate requirement is intended to provide continuity of services while the follow-on task order to W91CRB-20-F-0013 is competed and awarded. To prevent a break in services, the Government requires Janus Research Group, LLC to continue to provide an uninterrupted level of the critical services required during the extended period of performance. Thus, the Government is unable to re-compete or break out components of the PWS for issuance as separate competitive actions. Additionally, as discussed in previous areas of this document, any other alternative will cause an unacceptable and significant break in services, resulting in failure of PEO Soldier HQ to successfully conduct time critical work.

8. Market Research: Separate market research specifically targeted toward this request for a short-term extension to the period of performance was not conducted since the transition-in and transition-out periods required to onboard another contractor would exceed the 3-months being requested for this action. Again clause 52.217-8 Option to Extend Services was included in the task order. However, since options related to clause 52.217-8 were not priced, evaluated, and included during the task order competition, justification for other than full and open competition is being sought under the authority of FAR 16.505 (b)(2). Exceptions to the fair opportunity process and bilateral agreement with the contractor will be negotiated to continue the subject services.

Based on the current level of progress accomplished towards awarding the re-compete, PEO Soldier HQ SETA services contract, it is currently known that multiple RS3 vendors are interested in performing the long-term replacement task order. However, no other vendor would be able to successfully transition-in and perform the up to three (3) month extension to the period of performance as previously discussed in paragraph 5.

9. Other Facts:

a. **Procurement History:** Since 2006, 86% of the procurement actions for SETA support type services have been competitively awarded, as documented by the following procurement history:

(i) This action is a follow-on bridge action to contract modification W91CRB-20-F-0013-P00029, which was awarded under authority 10 United States Code (U.S.C) 3406(c)(3) as implemented in Federal Acquisition Regulation (FAR) 16.505(b)(2)(i)(C) using JA-25-D-0110 and extended performance by 3 months. Paragraph 7, Actions to Increase Competition, of the previous J&A, JA-25-D-0110, stated the subject SETA support services are currently being competed on solicitation RS3-24-0006, which has garnered significant competitive interest. However, no effort is being made to increase competition for this immediate effort since this is a bridge modification for up-to three (3) months of continued work performance by the incumbent, while the final steps to competitively award the renewal task order contract are conducted. This immediate requirement is intended to provide continuity of services while the follow-on task order to W91CRB-20-F-0013 is competed and awarded. To prevent a break in services, the Government requires Janus Research Group, LLC to continue to provide an uninterrupted level of the critical services required during the extended period of performance. Thus, the Government is unable to recompete or break out components of the PWS for issuance as separate competitive actions. Additionally, as discussed in previous areas of this document, any other alternative will cause an unacceptable and significant break in services, resulting in failure of PEO Soldier HQ to successfully conduct time critical work.

Based on an analysis of that previous paragraph 7, this J&A does not require one-level above approval authority elevation in accordance with Defense Federal Acquisition Regulation Supplement (DFARS) 206.304 and Procedures, Guidance, and Information (PGI) 206.304 for a failure to complete planned actions. As detailed in Section 5 above, source selection evaluations of proposals received for solicitation RS3-24-0006 and interchanges have delayed the award of the renewal contract but are still ongoing.

(ii) Task Order W15P7T-19-D-0068, W91CRB-20-F-0013 was competitively awarded to Janus Research Group, LLC. (Small Business) in October 2019. After multiple protests by the incumbent, performance of this task order began in March 2020. This single award, Cost Plus Fixed Fee (CPFF)/Cost Task Order was for one base year and four option years, with total performance through March 2025..

(iii) Contract W91CRB-15-C-0035 was competitively awarded to NCI, Inc. (Large Business) in August 2015. This single award, CPFF contract was for one base year with four option years. This contract provided both SETA and Logistics services.

(iv) Contract W91CRB-12-C-0058 was competitively awarded to NCI (Large Business) in August 2012. This single award, CPFF contract was for one base year with two option years and expired 27 Sep 2015.

(v) Contract W91CRB-12-C-0013 was competitively awarded to Jacobs (Large Business) in February 2012 for SETA support. This single award, CPFF contract was for one base year with two option years and expired 2 Feb 2015. A six-month extension was granted to allow for the follow-on contract to be awarded.

(vi) Contracts W91CRB-11-C-0074 and W91CRB-11-C-0076 were awarded to Engility and NCI respectively on 24 March 2011, on a sole source basis, as a bridge to transition the efforts to Cost-Plus-Fixed Fee (CPFF) until new contracts could be competed and awarded. Both contracts covered SETA and Logistics.

(vii) IDIQ Contract W91CRB-07-D-0014 was competitively awarded to NCI (Large Business) on a Time & Materials (T&M) basis to procure both SETA and Logistics services.

(viii) IDIQ Contract W91CRB-06-D-0037 was competitively awarded to Engility Corporation (Large Business) on a T&M basis to procure both SETA and Logistics services.

b. Other Facts. No other facts are applicable.

10. **Technical Certification:** I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

[Redacted Signature]

Date: 16 April 2025

[Redacted Title]
Contracting Officer's Representative
PEO Soldier Headquarters – RMD

11. Requirements Certification: I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

[REDACTED]

Date: 16 April 2025

[REDACTED]

Director
PEO Soldier Headquarters – RMD

12. Fair and Reasonable Cost Determination: I hereby determine that the anticipated cost to the Government for this contract action will be fair and reasonable as it is anticipated that the current contractor will agree to the Government extending the period of performance utilizing the existing Option Year 4 rates. Otherwise, a determination will be made using cost and price analysis techniques outlined in FAR 15.404-1, as applicable and as needed. Certified Cost & Pricing Data will be required if the Contractor does not agree to utilizing the existing rates already established for the current performance year.

[REDACTED]

Date: 16 April 2025

Lisa J. Yamakawa
Contracting Officer – ACC-APG

13. Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.

[REDACTED]

Date: 16 April 2025

Lisa J. Yamakawa
Contracting Officer – ACC-APG

Approval

Based on the foregoing justification, I hereby approve the award of a modification to increase the period of performance of task order W15P7T-19-D-0068-W91CRB-20-F-0013 for PEO Soldier HQ SETA Support Services for up to an additional three (3) months, in the estimated value of [REDACTED]. This request is approved on an other than full and open competition basis pursuant to the authority of 10 U.S.C 3406(c)(3) as implemented in FAR 16.505(b)(2)(i)(C), the order must be issued on a sole-source basis in the interest of economy and efficiency because it is a logical follow-on to an order already issued under the contract, provided that all awardees were given a fair opportunity to be considered for the original order, subject to availability of funds, and provided that the services and property herein described have otherwise been authorized for acquisition.

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Date: _____

[REDACTED]
Command Advocate for Competition